Winter Newsletter, 2006, Volume Vlll, Issue 1

The Mountainside

Coolfont Mountainside Association
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Lots of News Since Our Last Newsletter

by Jim Thompson

The updated CMA Covenants and Restrictions (C&R). We received all the completed Consent Forms we needed for two-thirds membership approval. We filed the documents with the Morgan County Commission by our December 13th deadline. Thanks to all who sent in their forms. The C&R updates will go into effect December 2008.



Firewise Sign installed by Jim Thompson

On November 12th we held our second annual Firewise Day. Herb Peddicord from the West Virginia Division of Forestry spoke to CMA members, we put up our Firewise sign that you will see as you enter CMA, and completed various clean-up tasks around the mountainside. We have updated our Firewise Plan for 2005. We now have enough volunteer hours from members to meet our two-dollar per resident contribution requirement. We now need only to hold a Firewise Board meeting to complete all the requirements for 2005 recognitions by Firewise Communities USA. Next year we will focus on making all our CMA roads and driveways accessible to emergency vehicles.

Coolfont Resort has been sold to Carl M. Freeman Communities, L.L.C. You can read about Carl Freeman on their website at www.freemancompanies.com. They will be working on a detailed development plan that should be completed by the end of March 2006.

See additional articles.

Board Updates

by Jim Thompson

The new members of the Board are Lois Copeland and Gordon Cloney. Cindy Van Meter and Hallie Kerr were re-elected and will retain their roles as Secretary and Social/ Recreation Committee chair, respectively. Lois will continue to publish the Newsletter and Gordon will remain chair of the Development and Architectural Control Committee (DACC). A special thanks to Paul Kagen and Elmer Broxson who both concluded six years on the Board. Elmer will continue as chair of the Water and Sewer and Roads Committee. Paul Kagen with Jean Cohen will be involved with fiscal concerns.

CMA Calendar

March 11th
Board Meeting 10am
CMA Office
Potluck: TBA

April 8th
Board Meeting 10am
CMA Office
Potluck 6:30pm : TBA

May 20th
Board Meeting 10am
CMA Office
Pool Beautification And Cleanup Day
Potluck 6:30pm: TBA

June 10th
Board Meeting 10am
CMA Office
Potluck 6:30pm: TBA

June 11th
Newcomers Brunch 11am

July 22
Board Meeting 10am
Annual Meeting 1pm
Dinner 6:30pm The Barn

All are welcome to board meetings
Host a potluck dinner

Second Home Owners Granted Tax Reprieve

by Lois Copeland

Second Home Owners won a reprieve several weeks ago when the State Senate voted to tax second homes at the same rate as primary residences. The bill goes to Governor Joe Manchin for his signature.

The intent of the previous bill was to protect seniors' homestead tax exemption when they move to relative or nursing homes. But an amendment designated the exempted residence as "primary place of abode," pushing non-primary homes into a higher tax bracket.

The legislation was put on a fast track when the West Virginia Legislature convened in January, so it could be acted upon before tax bill and estimates were prepared this spring.

The repeal of the double tax is due in large part to the activism of second home owners and their homeowners association. In addition, state representatives saw the increased taxes driving second home owners out of West Virginia. West Virginia wants to entice second home buyers to their state.



No double tax for second home owners!

Our property taxes, however, will probably increase this year. Increased land values and cost of housing is driving up property taxes for homeowners.

DACC Looks Out for CMA Members and Asks Members to Look Out for the Mountainside

by Gordon Cloney

The CMA Development and Architectural Control Committee (DACC) is continuing to keep an eye on the consistency of new homes and additions to existing properties and the standards set out by the Association. DACC, written into founding documents, helps insure that our Mountainside properties contribute and do not detract from the beauty of the mountain's forest environment and preserve its natural character. This mission is set out in detail in the Coolfont Mountainside Association Regulations and Guidelines for Building at Coolfont. This key document is available on the CMA website. It also includes the forms CMA members must use to obtain CMA approval for new construction and all major additions and exterior changes to existing properties.

As current DACC chairman I see the DACC as a user friendly advisory process which has enforcement authority if needed. Take a good look at the *DACC Regs* and check before construction or any exterior changes. With the changes at the Coolfont Resort we want to be sure CMA does its part to keep the Mountainside a first class community.

For help with DACC information, questions and concerns contact Gordon Cloney at: Gordon.cloney@dc.gov

Out and About In Berkeley Springs

by Lois Copeland

Have you noticed the new businesses in town? Take a drive down Washington St., stop in and enjoy.

Recently I dropped by **Donna's Coffee Stop** on the corner of John Street along Rt. 522. Donna Garner and her husband Jeff moved to the area from Berkeley, CA. She serves fair trade, organic, shade grown coffee perfectly brewed. The menu includes espresso, cappuccino, lattes fresh teas, hot chocolate, pastries, bagels and cookies. She also sells whole bean coffee.

The atmosphere is warm and friendly, just like Donna. For the early birds she opens at 6am on weekdays and 8am on the weekends.



Donna's Coffee Stop

Not only is the coffee good but Donna's is your local wireless internet connection site.

More reviews, see page 4

Coolfont Purchased by The Carl M. Freeman Companies

After many months of negotiation, Coolfont Recreation was purchased November 2005, shortly before Thanksgiving by Carl M. Freeman Companies, a development firm located in Olney, Maryland.

Freeman purchased Ashelman et.al CRI property, improvements, and family lands, approximately 775 acres. Freeman also purchased the Coolfont name. He did not purchase the CRI operation or the Coolfont Foundation. The existing CRI operations will be maintained by Freeman under a management agreement. An ongoing analysis will assess the continuation of different aspects of CRI.

Freeman Companies officials disclosed the purchase price of $7,833,800. An agreement allows the Ashelman Family, L.L.C future monies. Coolfont, built in the early 1960's by Sam Ashelman, was unique and ahead of its time in bringing together the healing powers of the springs and healthy living principles. In the past number of years the resort has fallen into some disrepair.

The Freeman Companies related that they take time to research and plan their developments and are "environmentally sensitive." There are no plans to demolish buildings or start construction for the next year. But changes have taken place. Treetop House Restaurant closed the middle of January, food service will continue serving a continental breakfast and catered meals for conference groups until May.

Treetop House will close the end of May and Freeman will take over CRI management. Offices may move to the spa facility following improvements to the spa building. All activities, including spa services will center around the spa facility. CMA rental homes, the chalets, and Woodland Lodge will continue on the rental program operated by Freeman Companies.

Freeman's long term plans are to build a second home community at Coolfont with construction over the next 5 to 15 years. Their company's reputation for quality housing will impact Coolfont, CMA and Berkeley Springs.

A special CMA membership meeting held December 10, 2005 offered CMA members an opportunity to speak with representatives of Freeman Companies. A concern of CMA and Freeman is water and sewage. Mr. Gallagher, a Freeman representative, said the current on-site sewer system that also handles seven CMA properties will be replaced. Construction may begin as soon as late spring. How construction will affect the seven CMA properties is unknown. The board members will be in communication with Freeman to answer this question and many others.



Treetop House long a Coolfont landmark to close end of May 2006.

In response to a question regarding Lake Siri, Mr. Gallagher said the lake may get deeper, not larger, it is considered an amenity and CMA may have access to it. Questions as to density, the vision for the resort and properties were unanswerable.

(Information obtained from the December Meeting, Morgan Messenger, The Journal)

Roads, Water and Sewer Facilities by Jim Thompson

CMA faces continuing challenges with our roads, water and sewer facilities. We will fix the most pressing problems as they arise, but we need a long-term vision for our infrastructure. (And a vision without funding is a hallucination!) CMA has a shoestring budget and relies heavily on volunteers to keep things running. And you can see that there is much to do. We hope to have a dialog with Carl M. Freeman Communities, L.L.C. on some of these issues.

If you are interested in helping out in any of these areas, please, please contact a Board member or Committee chair!



Magpie Place

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The red-headed woodpecker likes carpenter ants, berries and nuts. Both sexes red-headed.



CMA needs a logo! Submit your entries by May 31. Winners will be announced July 22 at the annual meeting. Winning entry will receive a dinner for two at a local restaurant. Send entries to CMA at above address.

WE WELCOME TO THE MOUNTAINSIDE

Jay and Ann Beckley

David Cannon

Dr. Heidi F. Mabatid and Maria Theresa Martinez

Gus and Nancy Alicea

Beate Kleiner

Arnold and Marlene Weinberg

N. Saleem and Karen Ivy Hylton

David Lunden

Richard "Jay" and Megan Dabbs

Congratulations to Ron and Myrna for breaking ground on their soon to be new home

Good luck to Laura and Chuck Braun and their son, we wish them love, happiness and peace.

We wish our good friend and Board member Hallie Kerr a speedy recovery!

Out and About In Berkeley Springs (con't)

by Lois Copeland

Acorns and Oaks opened for business, fall of 2005. I visited the store in January and met three delightful women who truly love their work. *Acorns and Oaks*, stocked full of interesting things for quilters and non-quilters alike, such as quilts of varying sizes, quilting kits, reams of colorful material, custom embroidery, fabric signs and numerous other items.

They are located 168 N. Washington St., previously *Nature Niche,* next door to *Inspirations. Nature Niche* moved several blocks down. They fit right in with artisans, old fashioned printers, and various other little shops in town.

Cheryl Rink, Kathy Arbogast and Shirley Hillgren also offer quilting classes and quilting services. Visit their shop or call 258-2277 for more information.

The Log Cabin Restaurant under new ownership is a down and dirty eating place full of interesting local people and home cooked good food. You walk into a smoky bar with loud chatter and music on the jukebox.

Eight ravenous CMA neighbors were led through cowboy double doors into a small room. Our table was ready and we quickly ordered. Out came spare ribs, filet, skirt steak and crab cakes. All good except for the skirt steak, which was dry. Next came dessert. Homemade coconut cake, brownie sundae, tiramisu and two kinds of cheesecake were shared by the table. We rated the restaurant a three and will return.



Quilts and more!

Closed on Mondays, live music on Saturday nights.